

NAPCS Unionization Research — State — Charter School Overview

Pennsylvania — NLRB Jurisdiction — May 2026

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Section 1: State Overview

State	Pennsylvania
Labor Board	NLRB — National Labor Relations Board
Governing Law	National Labor Relations Act (NLRA). Pennsylvania Virtual Charter School, 364 NLRB No. 87 (2016) established that all PA charter schools incorporated as private nonprofits with self-perpetuating boards are private employers under NLRB jurisdiction — not public employers under PLRB/PERA. This landmark ruling covers all 23 NAPCS PA schools.
Federal NLRB Jurisdiction	YES — NLRB Region 4 (Philadelphia) covers eastern PA schools; NLRB Region 6 (Pittsburgh) covers western PA schools; NLRB Region 5 (Baltimore) covers south-central PA (VIDA CS, Young Scholars of Central PA). All 23 NAPCS PA schools fall under NLRB jurisdiction per the 2016 landmark ruling.
Right-to-Work	NOT a Right-to-Work State — Pennsylvania has no right-to-work statute. Right-to-work legislation has been introduced in the Pennsylvania General Assembly but has not been enacted. PA charter school employees are private-sector employees under the NLRA; union security provisions are available in collective bargaining agreements. (RTW legislation has been proposed but not enacted as of May 2026.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — NLRB jurisdiction — secret ballot election required. No card-check available in PA.
Registry Sweep	COMPLETE — April 2026 — 175 charter schools searched
Research Window	March–May 2026

Section 2: Charter School Landscape

Total charter schools in Pennsylvania: 175 (Charter School Registry v50 (NCES/ELSI 2024-25; 175 open PA charter schools as of May 2026)). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Pennsylvania	23	13.1%	Active CONFIRMED NAPCS schools only. NLRB jurisdiction — all PA charters are private employers (2016 NLRB ruling). Excludes 6 discovery CONFIRMED (approved May 29, 2026 — NAPCS IDs pending).
Independently Organized (CONFIRMED)	23	13.1%	Mix of AFT/ACSE (Philadelphia), PSEA/NEA (Pittsburgh), and unknown union (Erie — Montessori Regional, Session C addition). Includes Propel network (7 campuses, 1 cert), 3 cyber charters (Agora/PA Cyber/PA Virtual), Environmental CS, VIDA, Urban Pathways, Young Scholars of Western PA, New Foundations, 21st Century, Folk Arts, Northwood, West Oak Lane, and

			Montessori Regional (Session C).
Discovery Schools — CONFIRMED (sponsor-approved; NAPCS ID pending)	6	3.4%	Olney Charter HS (closed), Delaware Valley Charter HS, Khepera CS (closed), Esperanza Academy CS (cert Jan 2026 — HIGH priority), Westinghouse Arts Academy (decertified Aug 2022), New Media Technology CS. NAPCS-ADD-PA-001 through -006. All approved by Executive Sponsor May 29, 2026. Not included in headline density.
Decertified (formerly organized)	1	0.6%	Westinghouse Arts Academy — decertified August 2022; 2 open NLRB ULP cases as of April 2026.
No Labor Board Records Found	150	85.7%	No NLRB ADS records found for remaining PA charter schools. Includes 3 NAPCS unverified schools (Multi-Cultural Academy — RM withdrawn 2013; West Oak Lane — ULP 2023, no election; Young Scholars of Central PA — no NLRB record) and all non-NAPCS PA charters.
Total Charter Schools in Pennsylvania	175	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 175 open PA charter schools as of May 2026).

Charter School Enrollment

Total Charter Enrollment	168,356 students — 10.0% of state K–12 enrollment (1,691,456 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	53,950 students in network-affiliated schools — 32.0% of total charter enrollment
Students in Organized Charter Schools	29,665 students (17.6% of charter enrollment) — 4,949 in CMO/EMO-affiliated schools (2.9%); 24,716 in independently organized schools (14.7%)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses [†]	Organized in State	Total Enrollment
Mastery Charter Schools	CMO	15	15	—	11,437

Propel Schools	CMO	8	8	8	3,312
KIPP Philadelphia	CMO	5	5	—	3,313
Universal Companies	CMO	5	5	—	2,422
Esperanza	CMO	2	2	1	2,616
Achievement House	CMO	1	1	—	927
Commonwealth Charter Academy	CMO	1	1	—	29,320
Imhotep Institute	CMO	1	1	—	603
TOTAL — All CMO/EMO Schools in Pennsylvania		38		9	53,950
of which organized (2.9% of charter enrollment)				9	4,949

Total enrollment shown is the combined enrollment of all CMO/EMO network schools in Pennsylvania. Organized network schools: 9 organized — 4,949 students in organized network schools (2.9% of total charter enrollment).

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

8 CMO (nonprofit). Approximately 137 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework

National Labor Relations Act (NLRA). Pennsylvania Virtual Charter School, 364 NLRB No. 87 (2016) established that all PA charter schools incorporated as private nonprofits with self-perpetuating boards are private employers under NLRB jurisdiction — not public employers under PLRB/PERA. This landmark ruling covers all 23 NAPCS PA schools. Pennsylvania is not a right-to-work state (Pennsylvania has no right-to-work statute. Right-to-work legislation has been introduced in the Pennsylvania General Assembly but has not been enacted. PA charter school employees are private-sector employees under the NLRA; union security provisions are available in collective bargaining agreements.). Charter schools in Pennsylvania are subject to NLRB jurisdiction as private employers (NLRB). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.

2: Charter School Structure

Pennsylvania operates 175 open-enrollment charter schools, enrolling approximately 168,356 students. 8 charter management organizations and education management organizations operate in Pennsylvania. The largest networks by campus count are Mastery Charter Schools (15 campuses in state), Propel Schools (8 campuses in state), KIPP Philadelphia (5 campuses in state). Approximately 137 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Pennsylvania charter school labor coverage has been dominated by two stories: the April 2021 Propel Schools network-wide election (236-82 across 13 campuses, covered by WESA Pittsburgh) — the largest single charter school union election by

vote count in the full NAPCS dataset — and the ongoing ACSE/AFT Local 6056 organizing campaign in Philadelphia, which has produced certifications at Folk Arts (December 2022), Northwood Academy (January 2023), Urban Pathways (June 2022), and New Foundations (July 2025). Philadelphia Inquirer and Chalkbeat Philadelphia have provided periodic coverage of the Philadelphia organizing wave. Pittsburgh Post-Gazette covered the Propel election and subsequent contract ratification.

Stakeholder Communications

PSEA (Pennsylvania State Education Association/NEA) maintains propelunion.com for the Propel network. ACSE/AFT Local 6056 is the primary Philadelphia-area organizing vehicle, coordinating with AFT Pennsylvania. No centralized PA charter union communications hub comparable to CTU-ACTS (IL) or Cleveland ACTS (OH) — PA organizing is distributed across two geographic ecosystems (Philadelphia/ACSE and Pittsburgh/PSEA). Propel Schools accepted the April 2021 election result without contest (April 29, 2021). Environmental Charter School at Frick Park contested a decertification petition in 2020 (06-RD-255099) — union retained certification 41-37. Northwood Academy has an open OIG investigation (Philadelphia media, 2023) regarding charter authorization — charter status should be verified before accumulator entry.

Legislative Context

PSEA has documented organizing interest at Young Scholars of Central PA as early as 2010 (PSEA Voice magazine, June 2010) — no NLRB petition was ever filed, illustrating the gap between organizing interest and formal petition in NLRB-jurisdiction states. PA has no card-check equivalent — all certifications require NLRB secret ballot election. SEIU Local 32BJ certified a custodial/support unit at Propel Schools (December 2025) — the first Service Employees International Union certification in the full 584-school NAPCS dataset and the first non-instructional-staff unit in PA.

Sourced Coverage

- [Esperanza Academy Charter students protest layoffs and other changes with a walkout \(AFT-PA president asked for voluntary recognition Dec 10; school declined; a majority of high-school staff signed AFT cards in Oct 2025\)](#) — The Philadelphia Inquirer, December 22, 2025

Section 6: Contract & CBA Access Registry

NLRB public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Propel Schools (7 NAPCS campuses — network unit)	Propel Charter School Education Association (PCSEA) / PSEA/NEA	Active Unknown — verify with PCSEA (propelunion.com) or PSEA	propelunion.com or PSEA
New Foundations Charter School	AFT Pennsylvania	In negotiations (first contract) N/A — recently certified July 2025	AFT Pennsylvania or school
Pennsylvania Virtual Charter School	PA Virtual Charter Education Association / PSEA/NEA	Active (assumed) Unknown	PSEA or school
Agora Cyber Charter School	Agora Cyber Education Association / PSEA (teachers); Agora Counselors Association / PSEA (counselors); 21st Century Cyber EA / PSEA (student services)	Active (assumed — 3 units) Unknown	PSEA or school
Pennsylvania Cyber	PA Cyber School	Active (assumed — 2	PSEA or school

Charter School	Education Association / PSEA/NEA (teachers); PA Cyber Academic Advisors and School Counselors EA / PSEA/NEA (advisors)	units) Unknown	
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